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# California Expungement & Record Relief Agent Training Reference

A complete operational knowledge base for clearing criminal records in California: the 1203.4 dismissal/set-aside, automatic Clean Slate relief (AB 1076 / SB 731), petition-based felony sealing, arrest-record sealing, and Prop 64 marijuana relief — eligibility, waiting periods, exclusions, procedure, and record requests.

|                  |                                                                                                               |
|------------------|---------------------------------------------------------------------------------------------------------------|
| Prepared for     | LegalEase / Expungement.ai — Wilma assistant                                                                  |
| Coverage         | State of California (Superior Court of the county of conviction; DOJ administers automatic relief)            |
| Primary statutes | Penal Code §§ 1203.4, 1203.4a, 1203.41, 1203.42, 1203.49 (dismissal); 851.91, 851.8 (arrest); 851.93, 1203.42 |
| Controlling law  | Clean Slate Act (AB 1076, 2019) as expanded by SB 731 (eff. July 1, 2023); Prop 64 (2016) marijuana           |
| Document type    | Internal training / retrieval reference — not legal advice                                                    |
| Currency         | Reflects law as of mid-2026, incl. SB 731 automatic relief and CR-180/181 (Rev. 1/1/2024)                     |

VERIFY BEFORE RELYING

California terminology is unusually slippery and the agent must be precise. “Expungement” here means a SET-ASIDE AND DISMISSAL under Penal Code 1203.4 — the plea is withdrawn and the case dismissed, but the conviction is NOT erased and the person generally still must disclose it for licensing, public office, and certain jobs. The automatic “relief” under AB 1076/SB 731 is, per the California DOJ, NOT a dismissal, sealing, or expungement of the DOJ record — it is a NOTATION that limits dissemination to most employers. Only a few mechanisms (factual-innocence sealing, Prop 64 redesignation/dismissal) approach true erasure. The agent must use the accurate label and verify the current statute and SB 731 implementation status.

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## How the agent should use this document

California offers several overlapping tools and the agent must route to the right one. (1) **Dismissal / set-aside** (PC 1203.4 and its variants 1203.4a, 1203.41, 1203.42, 1203.49) is the classic “expungement” — withdraw the plea, dismiss the case — available after probation/sentence completion. (2) **Automatic relief** (PC 851.93 arrests / 1203.425 convictions, under AB 1076 + SB 731) clears most eligible records with no filing via a DOJ notation. (3) **Petition-based felony sealing** (e.g., PC 1203.49 / SB 731 four-year route) reaches felonies the automatic system misses. (4) **Arrest-record sealing** (PC 851.91, or 851.8 factual innocence) clears non-conviction arrests. (5) **Prop 64** redesignates/dismisses marijuana convictions. The agent should (1) determine conviction vs. arrest-only; (2) check whether automatic relief already applies; (3) if not, choose the dismissal/sealing petition; and (4) screen the serious/violent/sex-registration exclusions.

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### Statutory shorthand used throughout

|                       |                                                                                      |
|-----------------------|--------------------------------------------------------------------------------------|
| PC 1203.4             | DISMISSAL / set-aside after successful probation (the classic “expungement”)         |
| PC 1203.4a            | Dismissal for misdemeanors/infractions where no probation was granted                |
| PC 1203.41            | Dismissal for certain felonies sentenced to county jail (realignment)                |
| PC 1203.42            | Dismissal for certain pre-realignment felony prison sentences (interests of justice) |
| PC 1203.49            | Sealing for human-trafficking victims; also the SB 731 felony-sealing framework      |
| PC 851.91 / 851.87    | SEALING of arrest records that did not lead to conviction                            |
| PC 851.8              | Sealing & destruction on a finding of FACTUAL INNOCENCE                              |
| PC 851.93 / 1203.425  | AUTOMATIC relief (arrests / convictions) — AB 1076 + SB 731 (DOJ notation)           |
| Prop 64 / H&S 11361.8 | Marijuana redesignation, dismissal, and sealing                                      |

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# 1. Eligibility rules

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Five tools, considered in routing order.

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## Tool 1 — Dismissal / set-aside (PC 1203.4 and variants)

The classic California “expungement.” A person may petition to withdraw the plea (or set aside the verdict) and have the case dismissed if they (a) successfully completed probation (or earned early termination) and (b) are not currently charged, on probation, or serving a sentence for another offense. Variants extend the relief: 1203.4a (no-probation misdemeanors/infractions), 1203.41 (felonies sentenced to county jail under realignment), and 1203.42 (certain older felony prison sentences, in the interests of justice). Effect: released from “penalties and disabilities,” but NOT entitled to deny the conviction for licensing, public office, or firearms.

## Tool 2 — Automatic relief (PC 851.93 arrests / 1203.425 convictions)

Under AB 1076 (2019) and SB 731 (eff. July 1, 2023), the California DOJ reviews the statewide database monthly and grants “relief” to eligible records without any petition: arrests not leading to conviction, and most eligible convictions after the conviction-free period. Per the DOJ, this is a NOTATION limiting dissemination to most employers, not a dismissal/sealing of the DOJ record itself. SB 731 extended automatic relief to many felonies (including some that involved incarceration), excluding serious, violent, and sex-registration felonies.

## Tool 3 — Petition-based felony sealing (SB 731 / PC 1203.49 framework)

For most felony convictions NOT requiring sex-offender registration, a person may petition to seal the conviction after a conviction-free period of four years following completion of sentence, where the court finds it in the interests of justice. This reaches felonies the automatic system does not clear and lets a person seek relief on their own timeline.

## Tool 4 — Arrest-record sealing (PC 851.91; factual innocence PC 851.8)

A person arrested but not convicted may seal the arrest record under PC 851.91 — generally as a matter of right unless a pattern of domestic violence/abuse or other exception applies; PC 851.87 shifts the burden to the prosecutor in contested cases. A stronger remedy, PC 851.8, seals AND destroys the records on a finding of factual innocence.

## Tool 5 — Proposition 64 marijuana relief (H&S 11361.8 / 11361.9)

Prop 64 (2016) lets people petition to dismiss/seal marijuana convictions that were decriminalized, or to redesignate felonies as misdemeanors/infractions. Much of this is now processed automatically by the DOJ and courts, but a petition remains available where automatic relief has not reached a record.

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**AGENT GUIDANCE**

*Route by outcome. Arrest only → 851.91 sealing (or 851.8 factual innocence). Completed probation → 1203.4 dismissal (or the right variant). Felony past the 4-year mark → automatic relief or an SB 731 sealing petition. Marijuana → Prop 64. Then confirm automatic relief hasn't already handled it. Be precise about effect: 1203.4 is a set-aside/dismissal (still disclosable for licensing/public office/firearms), automatic relief is a DOJ non-dissemination notation, and only 851.8 factual innocence approaches true erasure.*

## 2. Waiting periods

Dismissal under 1203.4 keys to probation completion rather than a fixed clock; automatic and petition-based sealing use conviction-free periods after the case ends. SB 1106 (2022) removed outstanding court debt as a barrier to sealing.

| Tool / matter                              | Remedy              | Waiting period              | Notes                        |
|--------------------------------------------|---------------------|-----------------------------|------------------------------|
| 1203.4 dismissal (completed probation)     | Set-aside / dismiss | On completion of probation  | Or early termination granted |
| 1203.4a (no probation, misd./infraction)   | Dismiss             | 1 year from conviction      | Generally                    |
| 1203.42 (older felony prison sentence)     | Dismiss             | 2 years after completion    | Interests of justice         |
| Automatic — misdemeanor conviction         | Relief (notation)   | 1 year after case ends      | SB 731                       |
| Automatic — felony conviction              | Relief (notation)   | 4 years after case ends     | Not serious/violent/sex-reg. |
| Automatic — felony arrest, no charge       | Seal                | 3 years                     | Not serious/violent/sex-reg. |
| Petition felony sealing (SB 731 / 1203.49) | Seal                | 4 years conviction-free     | After completion of sentence |
| Arrest, no conviction (851.91)             | Seal                | None (as a matter of right) | Unless an exception applies  |

The four-year felony mark is the key number under SB 731 — it governs both automatic conviction relief and the petition route, measured conviction-free from completion of the full sentence (incarceration, probation, parole, mandatory supervision, fines, and classes). A new conviction during the period resets it. Misdemeanor automatic relief comes faster (one year after the case ends), and arrest-only sealing under 851.91 generally has no wait.

### AGENT GUIDANCE

*Compute the felony clock conviction-free from completion of the FULL sentence, not the conviction date. A new conviction resets it.*

*For arrest-only matters there is usually no waiting period — 851.91 sealing is available as a matter of right unless an exception applies.*

### 3. Disqualifying / ineligible offenses

California keys exclusions to offense seriousness and registration status. The same core exclusions run across the automatic and petition sealing tools.

#### Excluded from sealing / automatic relief

- **Serious felonies** as listed in Penal Code § 1192.7(c).
- **Violent felonies** as listed in Penal Code § 667.5(c).
- **Felonies requiring sex-offender registration** under PC § 290 (and the underlying sex offenses).
- **Felonies punishable by life or death**, and other top-tier offenses by statute.

#### Limits on 1203.4 dismissal specifically

- Certain offenses are statutorily ineligible for 1203.4 relief even after probation (e.g., specified Vehicle Code and child-related sex offenses).
- A person currently charged with, on probation for, or serving a sentence for another offense is not eligible until that resolves.
- 1203.4 does NOT restore firearm rights (a governor's pardon is required) and does NOT erase the conviction for licensing, public-office, or Lottery-contract questions.

#### Common limits

- **Open / pending cases** disqualify across the board while pending.
- **DMV and licensing consequences** survive a 1203.4 dismissal — it is not a cure-all.
- **Federal and out-of-state convictions** are not reachable by California relief.
- **Sealed/relieved convictions still count** as priors and strikes for future sentencing.

#### VERIFY BEFORE RELYING

The serious-felony (1192.7(c)) and violent-felony (667.5(c)) lists and the PC 290 registration set are long, statute-specific, and periodically amended, and SB 731's automatic-relief eligibility has phased in over time. The agent must map each conviction to its Penal Code section and check it against the current 1192.7(c) / 667.5(c) / 290 lists before declaring eligibility — the offense label alone is not enough.

#### AGENT GUIDANCE

*The three-part exclusion — serious (1192.7(c)), violent (667.5(c)), sex-registration (290) — is the master filter for all the sealing tools. Run every felony against it first.*

*Correct the common misconception that 1203.4 “clears” everything: it does not restore gun rights, does not erase the conviction for licensing/public office, and does not undo DMV consequences.*

## 4. Case outcome rules

Outcome determines the tool and whether anything must be filed. This table is the agent's primary routing logic for California.

| Case outcome                          | Tool              | Route                        | Condition / wait                              |
|---------------------------------------|-------------------|------------------------------|-----------------------------------------------|
| Arrest, no conviction                 | 851.91            | Seal — petition (some auto)  | Matter of right; or auto 3 yr (felony arrest) |
| Factual innocence                     | 851.8             | Seal & destroy — petition    | Court finding                                 |
| Completed probation (misd. or felony) | 1203.4            | Dismiss — petition           | On completion                                 |
| Misd./infraction, no probation        | 1203.4a           | Dismiss — petition           | ≈ 1 year                                      |
| Felony, county jail (realignment)     | 1203.41           | Dismiss — petition           | Per statute                                   |
| Eligible misdemeanor conviction       | 1203.425          | Relief — automatic           | 1 yr after case ends                          |
| Eligible felony conviction            | 1203.425 / SB 731 | Auto or petition seal        | 4 yr conviction-free                          |
| Marijuana conviction                  | Prop 64 / 11361.8 | Redesignate / dismiss / seal | Mostly automatic                              |
| Serious/violent/sex-reg. felony       | —                 | Not sealable (pardon route)  | Categorical bar                               |

Effect of relief varies sharply. A 1203.4 dismissal releases the person from most penalties and disabilities and (since 2019) limits public access, but the person must still disclose the conviction for licensing, public office, and Lottery contracts, and firearms rights are not restored. Automatic relief is a DOJ notation that stops dissemination to most employers but leaves the record in the DOJ database, accessible to law enforcement and for mandated background checks. PC 851.8 factual innocence is the only routine path to actual destruction.

### AGENT GUIDANCE

*Always tell the user what the chosen tool actually does. Dismissal ≠ erasure; automatic relief ≠ dismissal; only factual innocence destroys. Misstating this is the most common California error.*

*If a record is automatic-relief-eligible but still showing on a background check, the user can contact the California DOJ to correct it rather than filing a petition.*

## 5. Required forms

California uses Judicial Council statewide forms for the petition-based tools; automatic relief requires no form. The forms are available at [courts.ca.gov](https://courts.ca.gov).

### Dismissal / set-aside (1203.4 and variants)

- **CR-180** — Petition for Dismissal (and Notice of Hearing). Identifies the case, the statute (1203.4 / 1203.4a / 1203.41 / 1203.42 / 1203.49), and the relief sought; space to explain why dismissal serves the interests of justice (attach MC-025 or MC-031 if more room is needed). Rev. Jan 1, 2024.
- **CR-181** — Order for Dismissal, the proposed order the judge signs. Rev. Jan 1, 2024.
- The prosecuting attorney must be given **15 days' notice** before relief is granted under 1203.4.

### Arrest-record sealing (851.91)

- **CR-409** — Petition to Seal Arrest and Related Records, with **CR-410** Order, for arrests not resulting in conviction.
- Factual-innocence sealing under 851.8 uses its own petition and a higher evidentiary showing.

### Automatic relief and Prop 64

- **No form** for automatic relief (851.93 / 1203.425) — the DOJ processes it; the person verifies via their DOJ record.
- Prop 64 relief is largely automatic; a petition under H&S 11361.8 remains available where a record was missed.

#### AGENT GUIDANCE

*For dismissals, CR-180 (petition) and CR-181 (order) travel together — file both, and use the correct statute box for the disposition (probation completed = 1203.4; no probation = 1203.4a; realignment felony = 1203.41). Build in the 15-day DA notice.*

*Where relief is automatic, there is nothing to file — direct the user to verify via a DOJ record review and, if a record was missed, contact the DOJ or file the residual petition.*



## 6. Filing instructions

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The petition sequence (dismissal or sealing) in the Superior Court of the county of conviction:

- 1 Get your record.** Obtain your California DOJ criminal history (and/or the court docket) to confirm the disposition, the statute, and whether automatic relief has already been applied.
- 2 Confirm the tool and eligibility.** Dismissal vs. sealing, probation/sentence completion, the conviction-free period, and the serious/violent/sex-registration exclusions.
- 3 Complete the form.** CR-180 + CR-181 for a dismissal (correct statute box), or CR-409 + CR-410 for arrest sealing; attach any interests-of-justice explanation.
- 4 File in the Superior Court of the county of conviction** and pay the filing fee (or request a fee waiver, form FW-001).
- 5 Serve the prosecuting attorney** (District Attorney or city attorney). For 1203.4, the prosecutor must receive at least 15 days' notice before relief is granted.
- 6 Hearing / decision.** Many dismissals are granted without a contested hearing if eligibility is clear; the court may set a hearing if the DA objects or the statute requires an interests-of-justice finding.
- 7 Order.** If granted, the court signs CR-181 (or the sealing order); the clerk and DOJ update the record. For dismissals, the record is set aside and dismissed; for 851.91, the arrest is sealed.

### AGENT GUIDANCE

*Venue is the county of conviction's Superior Court — not the county of residence. A person with cases in multiple counties files separately in each.*

*Lead with the 15-day DA notice on 1203.4 petitions and use the correct statute box; the wrong box (e.g., 1203.4 for a no-probation case that needs 1203.4a) is a common rejection reason.*

## 7. Court-specific quirks

- **“Expungement” is a misnomer.** PC 1203.4 is a set-aside and dismissal, not erasure; the conviction persists for licensing, public office, firearms, and sentencing. Always say so.
- **Automatic relief ≠ dismissal.** Per the California DOJ, AB 1076/SB 731 relief is a notation limiting dissemination, and the record stays in the DOJ database for law-enforcement and mandated background-check use.
- **SB 731 phased in.** Took effect July 1, 2023; the DOJ processes eligible records monthly, but backlogs mean a record may be eligible yet not yet relieved — verify via a DOJ record review.
- **Statute box matters.** 1203.4 (probation completed), 1203.4a (no probation), 1203.41 (realignment felony), 1203.42 (older prison felony) are distinct; using the wrong one gets the petition denied.
- **15-day DA notice** is mandatory before 1203.4 relief.
- **Firearms not restored.** Only a governor's pardon (or Certificate of Rehabilitation pathway) restores firearm rights lost to a felony.
- **County self-help variation.** Local Superior Courts publish their own 1203.4 packets and fee schedules; some offer record-clearance clinics.
- **DOJ correction line.** If automatic relief is owed but not reflected, the person can contact the California DOJ to fix the record.

### AGENT GUIDANCE

*Have users pull a DOJ record review to see what automatic relief already did before filing anything — it avoids unnecessary petitions.*

*Match the statute box to the disposition and build in the 15-day DA notice; those two steps prevent most 1203.4 rejections.*

## 8. Fee information

| Item                                 | Amount                | Note                                               |
|--------------------------------------|-----------------------|----------------------------------------------------|
| 1203.4 dismissal petition            | ~\$60–\$150 per case  | County-set; some counties charge no fee for 1203.4 |
| Arrest sealing (851.91)              | Filing fee varies     | County Superior Court                              |
| Automatic relief (851.93 / 1203.425) | \$0                   | DOJ processes; no filing                           |
| Prop 64 marijuana relief             | \$0                   | Largely automatic                                  |
| California DOJ record review         | ~\$25 + Live Scan fee | To confirm record / relief status                  |
| Fee waiver (FW-001)                  | \$0                   | For those unable to afford court costs             |
| Attorney fees (if represented)       | Varies                | Not required; self-help and clinics available      |

Automatic relief and Prop 64 cost nothing. The petition-based dismissal fee is county-set and modest (often \$60–\$150, with some counties waiving it for 1203.4), and a fee waiver (FW-001) is available for those who cannot pay. The near-certain out-of-pocket cost is the DOJ record review (about \$25 plus the Live Scan fingerprint-rolling fee) used to confirm the record and what relief has already applied.

### AGENT GUIDANCE

*Lead with the free routes (automatic relief, Prop 64) and the modest, sometimes-waived 1203.4 fee; surface FW-001 for cost-constrained users.*

*Budget the DOJ record-review cost (≈\$25 + Live Scan) as the realistic baseline expense even when filing pro se.*

## 9. Criminal history (DOJ) request process

Reviewing the record first confirms the disposition and statute, computes the waiting period, and shows whether automatic relief already applied — essential before filing.

### A. Statewide history — California Department of Justice (DOJ)

- A person obtains their own California criminal history record from the DOJ via Live Scan fingerprinting (application fee plus the rolling fee).
- The DOJ also administers automatic relief; if a record eligible for relief still appears on a background check, the person can contact the DOJ to correct it.

### B. Court records — Superior Court of the county of conviction

- The county Superior Court holds the case docket and disposition needed to complete CR-180 and to confirm probation completion and the statute.

### C. Federal — FBI Identity History Summary

- For records that may extend beyond California, the FBI fingerprint-based Identity History Summary is the federal equivalent; California relief reaches California records only.

#### VERIFY BEFORE RELYING

**DOJ record-review methods and fees, the Live Scan process, and SB 731 automatic-relief status can change. The agent should verify the current California DOJ request process and fee at the time of advising rather than quoting fixed figures from memory.**

#### AGENT GUIDANCE

*Frame the DOJ record review as step one — it grounds eligibility, fixes the right statute box, and reveals what automatic relief already did. Direct users to the DOJ for the statewide history and to the county Superior Court for the docket.*

## 10. Sample petitions and completed examples

California petition-based relief uses Judicial Council forms (CR-180/CR-181 for dismissals). The examples below show structure and key recitals for the main tools plus the automatic pathway. Names, dates, and identifiers are fictional and illustrative.

### Example A — CR-180 Petition for Dismissal (PC 1203.4), completed probation

SUPERIOR COURT OF CALIFORNIA, COUNTY OF LOS ANGELES  
PEOPLE OF THE STATE OF CALIFORNIA v. ANDRE L. CARTER  
Case No. BA1234567 (Form CR-180)

PETITION FOR DISMISSAL (Pen. Code, 1203.4)

1. Petitioner was convicted of: PC 459 (commercial burglary), a misdemeanor, on 03/14/2019.
  2. Petitioner was granted and successfully completed probation; probation has ended.
  3. Petitioner is not now charged with, on probation for, or serving a sentence for any offense.
  4. Petitioner requests that the plea be withdrawn, a not-guilty plea entered, and the case dismissed under Pen. Code 1203.4.
  5. Interests of justice: steady employment, no new offenses, family responsibilities (see attached MC-031 declaration).
- Notice: the District Attorney has been served at least 15 days before the hearing. Proposed Order for Dismissal (CR-181) attached for the court's signature.

NOTE: A 1203.4 dismissal is a set-aside/dismissal, not erasure; the conviction must still be disclosed for licensing and public office and does not restore firearm rights.

### Example B — CR-409 Petition to Seal Arrest (PC 851.91), no conviction

SUPERIOR COURT OF CALIFORNIA, COUNTY OF LOS ANGELES  
IN RE: MARIA S. DELGADO (Form CR-409)

PETITION TO SEAL ARREST AND RELATED RECORDS (Pen. Code 851.91)

1. Petitioner was arrested on 09/01/2023 by LAPD for PC 484 (petty theft); NO conviction resulted (case not filed / dismissed).
  2. Petitioner is entitled to sealing as a matter of right: the arrest did not result in conviction and no exception applies (no pattern of domestic violence; charges can no longer be filed).
  3. Petitioner requests an order sealing the arrest and related records under Pen. Code 851.91 (CR-410 order attached).
- Served on the prosecuting agency.

### Examples C & D — Automatic / Prop 64 pathways (no filing)

C. AUTOMATIC RELIEF (PC 851.93 / 1203.425, AB 1076 + SB 731):  
An eligible felony conviction, conviction-free for 4 years after completing the full sentence and not serious/violent/sex-registration, receives DOJ relief automatically (a notation limiting dissemination). No petition; verify via a

DOJ record review. If owed but missing, contact the DOJ.

D. PROP 64 MARIJUANA (H&S; 11361.8):

A pre-2016 marijuana felony is redesignated/dismissed and sealed – largely automatic. A petition remains available if a record was missed by the automatic process.

### **Proposed Order (CR-181 / CR-410)**

Each petition is accompanied by a proposed Order. CR-181 (Order for Dismissal) sets aside the plea/verdict and dismisses the case under the cited Penal Code section; CR-410 orders the arrest and related records sealed under PC 851.91 and directs the DOJ and arresting agency to update their records.

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This reference is an internal training and retrieval aid for the Wilma assistant. It summarizes California statutes and common practice and is not legal advice. California expanded automatic relief under AB 1076 / SB 731 (eff. July 1, 2023), and the DOJ treats automatic relief as a notation rather than erasure; the agent must verify the current text of the cited Penal Code sections, the 1192.7(c) / 667.5(c) / 290 exclusion lists, the CR-180/181 and CR-409/410 forms, DOJ record-review procedures, and SB 731 implementation status before relying on any rule here.